

BANARAS HINDU UNIVERSITY

B.Com. (Hons.) — Semester III Examination, 2022-23

Paper No. BCH-211: Business Regulatory Framework-I

Time: 3 Hours

Maximum Marks: 70

*Instructions: Answer all questions. All questions carry equal marks (14 marks each).***Question 1.**

“All contracts are agreement but all agreements are not contract.” Discuss this statement in the light of the provisions of the Indian Contract Act, 1872. [14]

OR

“Mere silence as to facts does not amount to fraud.” Discuss. [14]

Question 2.

What is the difference between void and voidable agreements? Explain briefly the different kinds of void agreements under the law. [14]

OR

What do you understand by ‘capacity to contract’? What is the effect of agreement made by persons not qualified to contract? [14]

Question 3.

What is breach of contract? What are the remedies available to an aggrieved party in a breach of contract? [14]

OR

Explain the rules regarding acceptance of an offer. [14]

Question 4.

Distinguish between contract of guarantee and contract of indemnity. State the circumstances when a surety is discharged of his liability. [14]

OR

“The liability of surety is co-extensive with that of the principal debtor.” Discuss and illustrate this statement with suitable example. [14]

Question 5.

Define agency and state the various methods of terminating an agency. When is an agency irrevocable? [14]

OR

Write short notes on any two of the following: [7+7]

(a) Quasi contract

(b) Bailment

(c) Undue influence

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